

GOVERNMENT OF INDIA
MINISTRY OF COMMERCE & INDUSTRY
CONTROLLER GENERAL OF PATENTS, DESIGNS & TRADE MARKS

THE PATENTS ACT, 1970

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(39 of 1970)

[As amended by the Patents (Amendment) Act, 2005]

ARRANGEMENT OF SECTIONS

CHAPTER I: PRELIMINARY

Section 1: Short title, extent and commencement

Section 2: Definitions

Section 3: What are not inventions

CHAPTER II: INVENTIONS NOT PATENTABLE

Section 3(a): An invention which is frivolous or which claims anything obviously contrary to well established natural laws

Section 3(b): An invention the primary or intended use or commercial exploitation of which could be contrary to public order or morality

Section 3(c): The mere discovery of a scientific principle or the formulation of an abstract theory

Section 3(d): The mere discovery of a new form of a known substance which does not result in the enhancement of the known efficacy of that substance

Section 3(e): A substance obtained by a mere admixture resulting only in the aggregation of the properties of the components thereof

Section 3(f): The mere arrangement or re-arrangement or duplication of known devices each functioning independently of one another in a known way

Section 3(g): Omitted

Section 3(h): A method of agriculture or horticulture

Section 3(i): Any process for the medicinal, surgical, curative, prophylactic diagnostic, therapeutic or other treatment of human beings or animals

Section 3(j): Plants and animals in whole or any part thereof other than micro-organisms but including seeds, varieties and species and essentially biological processes for production or propagation of plants and animals

Section 3(k): A mathematical or business method or a computer programme per se or algorithms

Section 3(l): A literary, dramatic, musical or artistic work or any other aesthetic creation whatsoever

Section 3(m): A mere scheme or rule or method of performing mental act or method of playing game

Section 3(n): A presentation of information

Section 3(o): Topography of integrated circuits

Section 3(p): An invention which in effect, is traditional knowledge or which is an aggregation or duplication of known properties of traditionally known component or components

CHAPTER III: APPLICATIONS FOR PATENTS

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Section 6: Persons entitled to apply for patents

Section 7: Form of application

Section 8: Information and undertaking regarding foreign applications

Section 9: Provisional and complete specifications

CHAPTER IV: PUBLICATION AND EXAMINATION OF APPLICATIONS

Section 11A: Publication of application

Section 11B: Request for examination

Section 12: Examination of application

CHAPTER V: OPPOSITION PROCEEDINGS TO GRANT OF PATENTS

Section 25: Opposition to grant of patent

SCHEDULE: FEES